



Appeal Decision

Site visit made on 26 June 2026

by C Butcher BSc MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 9 September 2026

Appeal Ref: 6003718

The New Inn, Main Road, Totton, Hampshire, SO40 7EP

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Punch Partnerships PML Ltd against the decision of New Forest District Council.
 - The application Ref is 25/10601.
 - The development proposed is the erection of two semi-detached residential dwellings (Use Class C3) and change of use of Public House (Sui generis) to allow for conversion into three self-contained residential dwellings (Use Class C3), with external alterations, removal of trees and associated hard and soft landscaping.
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Decision

1. The appeal is allowed and planning permission is granted for the erection of two semi-detached residential dwellings (Use Class C3) and change of use of Public House (Sui generis) to allow for conversion into three self-contained residential dwellings (Use Class C3), with external alterations, removal of trees and associated hard and soft landscaping at The New Inn, Main Road, Totton, Hampshire, SO40 7EP in accordance with the terms of the application, Ref 25/10601, subject to the conditions in the attached schedule.

Applications for costs

2. An application for an award of costs was made by Punch Partnerships PML Ltd against New Forest District Council. This application will be the subject of a separate decision.

Preliminary Matters

3. An updated version of the National Planning Policy Framework (the Framework) was published on 17th August 2026. In the interests of fairness, I provided the main parties with an opportunity to provide comments on the new Framework as part of the appeal process. I have taken account of those comments when making my decision.

Main Issues

4. The main issues are: (i) whether the loss of the public house would be acceptable in policy terms; and (ii) the effect of the proposed development on the integrity of various European designated habitats sites.

Reasons

Loss of the Public House

5. Policy DM19 of the New Forest District Local Plan Part 2: Sites and Development Management, April 2014 (the LP) sets out the Council's approach to the potential loss of public houses. It notes that development proposals will not be permitted where they would result in the loss of an important local facility, or if they would leave the local area without such a facility.
6. As part of the original planning application, the appellant provided a marketing report, produced by Savills in September 2025 (the MR) and a separate viability study which was also produced by Savills in May 2025 (the VS). The VS is quite a comprehensive document which paints a fairly bleak picture in relation to the viability of the building as a public house. In terms of historic trade, it is clear from the barrellage figures that sales have been declining for several years, with the exception of 2021 when lockdown restrictions were eased during the pandemic. The VS also sets out likely refurbishment costs and potential future trade and concludes that the business is unlikely to be viable in future.
7. Clearly such reports are based on certain assumptions in terms of future projections. However, the VS appears to be based on a robust methodology, and I can see no reason to disagree with the conclusions reached.
8. The public house had been marketed for approximately nine to ten months by the time the MR was produced. It notes that twelve enquiries were received during that period, and while several viewings were conducted, no offers were received in relation to purchasing the building for use as a public house, restaurant or some other community facility. The MR notes that the lack of cover numbers and the limited internal space were key issues raised by those who undertook viewings.
9. In essence, it seems clear to me that the building is not financially viable as a public house and that there appears to be little interest in purchasing it, either for that use or indeed other alternative community uses. I recognise that the public house would be a valuable facility for those who did frequent it, and I am mindful of the fact that over a hundred people objected to the original application, primarily due to the potential loss of the public house on a permanent basis. However, LP Policy DM19 clearly requires a judgement as to whether a proposed development would result in the loss of an important local facility. Therefore, by extension, public houses cannot be considered to automatically meet that description by default.
10. In this instance, it seems to me that the VS and MR collectively demonstrate that the public house has not attracted sufficient custom to enable it to be regarded as an important local facility for some time, and that there is little prospect of that situation changing in future. On that basis, I find that the building is not an important local facility and therefore the proposal accords with the first requirement of Policy DM19.
11. The second part of the policy relates to the matter of alternative provision in the wider area. Both the Council's officer report, and the appellant's evidence, consider this issue in some detail. The closest alternative public house to the appeal site appears to be the Peg and Parrott on Rumbridge Street. In my view, this is within reasonable walking distance for the majority of people. I note that

there are also other public houses in the town centre which are within walking distance. Moreover, it is clear from the third party representations that The New Inn was used for various community events. However, as set out within the Council's officer report, there are alternative facilities nearby, including Hounslow Community Hall and Colbury Memorial Hall. Therefore, on the basis of the alternative public houses and community buildings that exist in the area, I am satisfied that the proposal would not leave the local area without a comparable facility.

12. The final clause of LP Policy DM19 sets out that a change of use to an alternative business or community use will be acceptable where the loss of a public house is permitted. It therefore does not explicitly say that only those uses are acceptable, or that a residential use would be unacceptable. In any event, the MR clearly states that, over the marketing period, no offers for alternative community uses were received.
13. On the basis that the public house cannot be considered to be an important local facility, that there are alternative facilities in the area, and that there has been no interest in retaining the building for alternative community uses, I am satisfied that the proposed development complies with LP Policy DM19. The relevant aspects of the policy seek to retain such uses where possible.

European Designated Habitats Sites

14. The appeal site is within the zone of influence of various protected sites. These are the New Forest Special Area of Conservation (SAC), the New Forest Special Protection Area (SPA), the New Forest Ramsar site, the Solent and Southampton Water SPA, the Solent and Southampton Water Ramsar site and the Solent Maritime SAC. The sites collectively support an internationally important assemblage of flora and fauna including aquatic vegetation and important bird populations such as dark-bellied brent geese, common terns, hen harriers and woodlarks. The habitats also include important features such as heaths, mudbanks and salt meadows.
15. Given the number of protected sites involved, I have elected not to list their individual qualifying features in detail in order to avoid making this decision too unwieldy. However, this information is readily available on the Natural England website, and I can confirm that I have had careful regard to it when making my decision. In terms of objectives for the sites, these can be summed up as being the need to ensure that the integrity of the sites is maintained or restored as appropriate, and that they contribute to achieving the favourable conservation status of their qualifying features.
16. The protected sites are an important recreational and economic resource. They are well frequented by the public and it is likely that occupants of the proposed development would visit the sites. The proposal also has the potential to have negative impacts in relation to air quality. It is necessary for me, as the competent authority, to conduct an Appropriate Assessment in relation to the effect of the development on the integrity of the sites.
17. The evidence before me is clear that the proposal, particularly when combined with other development in the area, would have a likely significant effect due to increased disturbance through recreational activity and impacts on air quality. The appellant has provided a completed Unilateral Undertaking (the UU) which secures

financial contributions towards various matters in accordance with the Council's adopted strategies¹. In particular, the UU provides £560 towards air quality monitoring, £4,995 towards habitats mitigation (access management and monitoring), £4,535 towards habitats mitigation (Bird Aware Solent) and £34,110 towards habitats mitigation (infrastructure).

18. I note that the Council's solicitor has raised various concerns with the drafting of the UU. However, it seems to me that these matters do not prevent the identified contributions from being secured. The solicitor has also questioned whether the UU provides mitigation for all sites that could be impacted by the proposal and has stated that the contributions are not index linked and also that no monitoring of commencement contribution has been provided. I note that the Council has not pointed me towards particular aspects of policy or guidance that require index linking or monitoring of commencement contributions and I do not consider that these issues make a material difference to the mitigation provided.
19. Moreover, as part of this appeal, I have consulted Natural England as the statutory body for such matters. The concerns of the Council's solicitor were included in the package of material provided to them. As part of the consultation, I specifically asked Natural England to confirm that they are satisfied that the financial contributions would mitigate the potential effects on all of the stated protected sites. They have confirmed that they are indeed satisfied in that regard. On that basis I find that the contributions would sufficiently mitigate the level of harm likely to be caused by the development in relation to recreational impacts and air quality. In the interests of fairness, I provided the main parties with an opportunity to comment on Natural England's response. However, I note that the Council has not sought to disagree with the conclusions reached by the statutory body.
20. Natural England has also noted that the proposal could result in significant impacts on designated sites in the Solent (Including the Solent and Southampton Water SPA and RAMSAR site, the Solent & Isle of Wight Lagoons SAC, Solent Maritime SAC, and Solent and Dorset Coast SPA) in relation to nutrient neutrality. As before, I have had careful regard to the qualifying features and objectives for these sites as set out on the Natural England website.
21. The Council has suggested a condition which would require the details of a mitigation package for nutrients to be agreed. I note that Natural England has confirmed that they are satisfied with such an approach. The appellant has also provided a completed nutrient calculator and details of an email exchange with a credit provider which confirms that sufficient credits are available to meet the calculated requirement. On that basis, I have sufficient certainty that the necessary mitigation will be secured.
22. I therefore conclude that, having had regard to all matters raised, the proposal would not result in an adverse effect on the integrity of protected sites. It would therefore conform with Policy ENV1 of the New Forest District Local Plan Part 1 2016 – 2036, as well as LP Policy DM2. Taken together, the relevant aspects of these policies seek to protect biodiversity within designated habitats sites. The proposal would also conform with the requirements of the relevant SPD which have similar aims.

¹ Mitigation for Recreational Impacts SPD, May 2021 and Air Quality Assessments in New Development SPD, June 2022.

Other Matters

23. The Council regard the existing building as a non-designated heritage asset. Its significance is derived from its attractive appearance, including rounded gables, decorative window surrounds and cornice string courses. In this instance the external changes to the building would be relatively minor in nature, including the removal of a non-original single storey link and new windows on the northern section of the building to match those on the southern section. I am satisfied that these works, and the internal works required on the layout, would not harm the significance of the heritage asset.
24. There is no substantive evidence before me that would lead me to conclude that the proposed development would increase the risk of flooding or that it would result in unacceptable highway safety concerns. Similarly, there is no substantive evidence that the development would result in undue pressure on local services and facilities, or that Japanese knotweed is a particular concern. The impacts of the construction phase can be controlled by condition. The Council has not objected to the suggested approach in relation to trees. I can see no reason to disagree, and I am content that required works can be controlled by condition.
25. In terms of character and appearance, the Council has no concerns in that regard, and I am satisfied that the design, scale and layout of the proposal would conserve local character. In terms of the living conditions of neighbouring residents, the Council's officer report concludes that the relationship with the surrounding development is acceptable and would not result in undue overlooking or loss of outlook, subject to a condition requiring certain windows to be obscure glazed. Given the separation distances that would exist, including to the existing homes on Jacobs Walk, I agree with this assessment.
26. The proposal would result in the loss of a small number of job opportunities associated with the building's use as a public house. However, given the limited scale of the business, the effect would be very limited. It would also be balanced out by job opportunities provided by the construction phase of the development. Finally, the evidence before me confirms that the public house has not been identified as an asset of community value.

Conditions

27. I have imposed conditions to identify the relevant timescales and plans in the interests of certainty. A condition to require obscure glazing in certain windows is necessary to protect living conditions. For similar reasons, a Construction Environmental Management Plan is required to reduce the impact of construction on neighbouring occupiers. A condition has also been imposed to reduce water usage within the development and to mitigate the impacts on protected European sites.
28. Several conditions are required to preserve character and appearance, including in relation to materials, trees and landscaping. I have also imposed a condition to preserve and enhance biodiversity. Finally, two conditions are necessary to secure cycle and car parking spaces in the interests of sustainable travel and highway safety.
29. I have not imposed a condition to remove certain permitted development rights. Policy DM6 of the Framework states that such rights should not be restricted

unless there is clear justification for doing so. I do not consider that there is such justification in this instance.

30. Certain conditions relating to biodiversity, landscaping, trees and construction are 'pre-commencement' conditions. This is necessary to ensure that the impacts of construction on such features or issues are suitably managed from the earliest stages.

Planning Balance and Conclusion

31. Policy HC6 of the Framework seeks the retention of key community facilities unless certain criteria are met. Part 1(a) of the policy refers to the prospect of the facility being retained. As part of that assessment, it sets out a requirement for marketing to take place for a period of at least twelve months.
32. The MR before me covers a marketing period of nine or ten months. I note that the appellant's appeal statement sets out that marketing continued after that period, and that at the time that the statement was produced, the marketing period was at least thirteen months. However, given that the presented MR does not cover a twelve month period, I do not find conformity with the stipulation in part 1(a) of the policy.
33. Part 1(c) of the policy provides an alternative route. It sets out that community facilities should not be lost unless the decision maker is satisfied that there is sufficient alternative provision in the local area, and therefore that the loss would not diminish access to key facilities. I have considered this matter in detail within the main reasoning section. For the same reasons, I find that there are sufficient alternative facilities in the area which ensure that access to such facilities is not diminished. The proposal therefore conforms with Policy HC6 of the Framework.
34. Moreover, for the reasons given, the proposed development is in accordance with the development plan when considered as a whole. Having had regard to all matters raised, I conclude that the appeal should be allowed.

C Butcher

INSPECTOR

Schedule of Conditions

- 1) The development hereby permitted shall begin not later than three years from the date of this decision.
- 2) The development permitted shall be carried out in accordance with the following approved plans:
 - 24.3540.101 P5 (Proposed Site Plan);
 - 24.3540.110 P3 (Proposed Cross Section Elevations);
 - 24.3540.102 P4 (Proposed Ground Floor Plan);
 - 24.3540.103 P4 (Proposed First Floor Plan);
 - 24.3540.109 P1 (Proposed Section AA);
 - 24.3540.001 P1 (Existing Site Plan);
 - 24.3540.002 P1 (Existing Ground Floor Plan);
 - 24.3540.003 P1 (Existing First Floor Plan);
 - 24.3540.004 P1 (Existing Elevations);
 - 24.3540.005 P1 (Existing Elevations);
 - 24.3540.100 P1 (Block and Location Plan);
 - 24.3540.104 P2 (Proposed Roof Plan);
 - 24.3540.105 P2 (Proposed Floor Plans Units 4 – 5);
 - 24.3540.106 P1 (Proposed Elevations Units 4 – 5);
 - 24.3540.107 P2; (Proposed Elevations)
 - 24.3540.108 P1 (Proposed Elevations).
- 3) The first floor bathroom windows labelled on the approved plans as the south-west elevation of Plot 3, the east elevation of Plot 4 and the west elevation of Plot 5 shall be: (i) obscurely glazed, and (ii) non-opening at all times unless the parts that can be opened are more than 1.7m above the floor. The windows shall be retained as such in perpetuity.
- 4) The development hereby permitted shall not be occupied until:
 - a) A water efficiency calculation in accordance with the Government's National Calculation Methodology for assessing water efficiency in new dwellings has been undertaken which demonstrates that no more than 110 litres of water per person per day shall be consumed within the development, and this calculation has been submitted to, and approved in writing by, the Local Planning Authority. All measures necessary to meet the agreed waste water efficiency calculation must be installed before first occupation and retained thereafter;
 - b) A mitigation package addressing the additional nutrient input arising from the development has been submitted to, and approved in writing by, the Local Planning Authority. Such mitigation package shall address all of the additional nutrient load imposed on protected European Sites by the development when fully occupied and shall allow the Local Planning Authority to ascertain on the basis of the best available scientific evidence that such additional nutrient loading will not have an adverse effect on the integrity of the protected European Sites, having regard to the conservation objectives for those sites; and The mitigation package shall include a timetable for implementation and measures for retention and maintenance of that mitigation package, which shall thereafter be implemented.

- 5) Before development commences above slab level, samples or exact details of the facing and roofing materials to be used shall be submitted to and approved in writing by the Local Planning Authority. The development shall be implemented in accordance with the approved details.
- 6) Prior to the commencement of development hereby approved, an Ecological Enhancement Schedule, supported by an appropriately detailed plan showing the locations of the enhancement measure(s), shall be submitted to and approved in writing by the Local Planning Authority. Prior to occupation, evidence shall be submitted to confirm the agreed features have been installed, for example, a photographic record and/or a signed statement by a suitably qualified ecologist.
- 7) No development (including site preparation, clearance and demolition) shall take place until the tree protection measures as set out in the submitted Mulberry Arboricultural Implications Assessment Ref TRE/NIH, dated 2nd June 2025, and the Arboricultural Method Statement ref TRE/NIH, dated 2nd June 2025, have been fully implemented and installed on site. The tree protection measures shall be maintained and retained on site in accordance with the approved details throughout the development unless otherwise agreed with the Local Planning Authority.
- 8) Prior to the commencement of development or any associated works (including site clearance, demolition and construction works), three working days' notice shall be given to the Local Planning Authority (Tree Officer) to attend a pre-commencement site meeting before any development or associated works is then undertaken on site.
- 9) Prior to commencement of development, a Construction Environmental Management Plan (CEMP) shall be submitted to and approved in writing by the Local Planning Authority. The approved details shall be implemented before the development hereby permitted commences and shall be adhered to throughout the period of construction. The development shall only be carried out in accordance with the CEMP as approved.
- 10) Prior to the first occupation of each residential unit hereby permitted, the cycle parking facilities for that dwelling as shown on the Proposed Site Plan ref 24.3540.101 Rev P5 shall be provided and made available for use in accordance with the approved plans, and these cycle parking facilities shall thereafter be retained, maintained and kept available for the occupants of the development at all times.
- 11) The development hereby permitted shall not be occupied until the spaces shown on plan 24.3540.101_P5 for the parking of motor vehicles have been provided. The spaces shown on plan 24.3540.101_P5 for the parking of motor vehicles shall be retained and kept available for the parking of motor vehicles for the dwellings hereby approved at all times.
- 12) Before development commences, a scheme of landscaping of the site shall be submitted for approval in writing by the Local Planning Authority. No development shall take place unless these details have been approved and then only in accordance with those details.
- 13) The hard and soft landscaping scheme as approved under Condition 12 shall be fully implemented prior to first occupation or in accordance with any phasing submitted to and agreed in writing by the Local Planning Authority.

Any trees or shrubs which die, become damaged or diseased within five years of the full completion of the development, or from when they are planted, whichever is the later, shall be replaced with the same species in the first available planting season (November to March) unless the Local Planning Authority has agreed in writing to a change of species beforehand.